

26STCV01673 26STCV01673

County: los-angeles

Division: Civil Law and Motion

Department: 529

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Case Number: 26STCV01673 Hearing Date: September 3, 2026 Dept: 529

LA FOODS, LLC VS IMPERIAL VALLEY FOODS
INC.

MOTION TO TRANSFER VENUE

Date of Hearing: September
3, 2026 Trial Date: None set.

Department: 529 Case No.: 26STCV01673

Moving Party: Defendant Imperial Valley Foods, Inc.

Responding Party: Plaintiff LA Foods LLC

BACKGROUND

On January 16, 2026, Plaintiff LA Foods, LLC filed a complaint against Defendant Imperial Valley Foods Inc. dba Fruvemex for breach of contract. Plaintiff alleges it placed an order with Fruvemex for 40,320 lbs. of IQF ("Individually Quick Frozen") broccoli florets, which order was to be delivered directly to Plaintiff's customer, Real Good Food Company ("RGF"). Plaintiff paid \$43,336.00 to Defendant for the order and Defendant delivered the Product directly to RGF. Plaintiff alleges, however, Defendant delivered the Product in an adulterated state, containing an unacceptably high level of larvae.

[TENTATIVE] RULING

Defendant Imperial Valley Foods, Inc.'s
Motion to Transfer Venue is GRANTED.

DISCUSSION

Defendant Imperial Valley Foods, Inc.
moves this court to transfer the venue to Imperial County from Los Angeles
County on the grounds the contract was made and performed in Imperial County,
the obligations arose in Imperial County, the alleged breach occurred in
Imperial County, and Defendant's principal place of business is, and always has
been, in Imperial County.

A corporation may be sued in the county
where the contract is made or is to be performed; where the obligation or
liability arises or the breach occurs; or in the county where the
principal place of business is situated. (CCP § 395.5.)
“For purposes of venue, a corporation has been deemed bound by its designation
of a principal place of business in corporate documents filed with the
Secretary of State.” (Rosas v. Superior Court (1994) 25
Cal.App.4th 671, 673-674.)

Defendant argues when Plaintiff placed
the order by e-mail, Defendant received the e-mail at its principal place of
business in Calexico, California (Imperial County). As Defendant's acceptance of
the order was the last act necessary for making the contract, the contract was
made in Calexico, California. Moreover, Defendant's performance was entirely in
Imperial County. Plaintiff contracted for the Product to be delivered to
Plaintiff's transportation carrier in Calexico, California. With Defendant's
principal place being in Imperial County, the contract being entered into
Imperial County, and the contract being performed in Imperial County, Defendant
argues the court should change venues.

In opposition, Plaintiff argues under
established California law, a contract is made where the last act necessary to
form it occurs—and, here, that “last act” is undisputably the communication of
acceptance to the offeror Plaintiff—not the dispatch by the offeree, Defendant.
Moreover, the declaration of Defendant's present, Fernando Caballero,
undermines Defendant's motion as he states the email order at issue here “was
received by IVF at its principal place of business in Calexico, California, or
perhaps at a different remote location.” (Caballero Decl. ¶16.) Having failed to

establish with certainty where acceptance was dispatched, Defendant has not established Imperial County is proper.

The court finds Defendant has sufficiently demonstrated that Los Angeles is not the proper venue for this action and the proper venue is Imperial County.

Plaintiff misreads Civil Code section 1583. Section 1583 expressly deems consent fully communicated as soon as the accepting party puts the acceptance in the course of transmission. In other words, the last act is the offeree's dispatch, not the offeror's acceptance. Mr. Caballero's declaration where he received the e-mail does not affect the analysis as for electronic communications, it is where Defendant accepted the e-mail.

Based on the foregoing, the motion to transfer venue is GRANTED.